

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

			Defendant to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 8	25CV469650	Jane Doe vs Chaochin Lu et al	Hearing on Demurrer (Special and General) to FAC Defendant's Demurrer was filed on February 24, 2026 and a hearing date set on May 22, 2026. Notice was proper. On May 22, 2026, the Plaintiff was not present, and the motion was continued to July 10, 2026. The Court also issued an Order to Show Cause Re: Dismissal and sent notice to the Plaintiff. To date there is no filing by Plaintiff opposing Defendants' Demurrer. Defendants' Demurrer to Plaintiff's Complaint is Unopposed and Sustained with 15 days leave to amend.
LINE 9-10	25CV472277	Vahe Tashjian vs Macias Gini & O'Connell LLP et al	Hearing on Demurrer and Motion to Strike FAC. See Lines 9-10 below for tentative ruling. The Court will prepare and file the formal Order.
9:01 LINE 1	25CV479391	Mark Shaw et al vs Chris Rego et al	Hearing on Application to Appear Pro Hac Vice Counsel Defendant's Application for Vaughn Fisher to appear pro hac vice pursuant to California Rules of Court Rule 9.40. Notice being proper, no opposition having been filed, and good cause appearing, the application is GRANTED. Moving party (Defendant) to submit proposed order.

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Calendar Line 1

Case Name: Farzam Forouzandeh v. Henderson Square Associates, et al.

Case No.: 23-CV-421547

Factual and Procedural Background

This is an action for negligence, premises liability, and related claims brought by plaintiff Farzam Forouzandeh (“Plaintiff”) against defendants Henderson Square Associates and Woodmont Real Estate Services, LP (collectively, “Henderson Defendants”) and Thaddeus N. Taube (collectively, “Defendants”).

According to the first amended complaint (“FAC”), on or around June 16, 2021, Plaintiff moved into a one-bedroom, one-story apartment located at 998 Henderson Avenue, Apt. 31, in Sunnyvale, California. (FAC at ¶ 9.) Plaintiff’s apartment complex, listed as part of the “Birchwood Apartment Homes,” was owned by the Henderson Defendants. (Id. at ¶¶ 10-11.)

After moving into his apartment, Plaintiff visited the Henderson Defendants’ office approximately six times, reporting numerous safety issues with his apartment, to no avail. (FAC at ¶ 12.) One of the most concerning issues was a plank of wood that was sagging in Plaintiff’s kitchen that he wanted replaced. (Id. at ¶ 13.) As a tall man, Plaintiff had little space in his kitchen to move around, so he could not easily avoid walking over the sagging area. (Ibid.)

Because he spoke mostly Farsi, Plaintiff utilized the assistance of Iranian-American friends who spoke English, to accompany him when he visited the Henderson Defendants to report these serious concerns to them. (FAC at ¶ 15.) On August 19, 2021, Plaintiff, with the assistance of a fluent English and Farsi-speaking friend, wrote the Henderson Defendants an email identifying problems in his apartment unit including, but not limited to, **“[t]he kitchen floor’s parquet has a problem and it gets worse by walking on it, but no one took care of it yet.”** (Id. at ¶ 16.) Even after Plaintiff’s letter, and several additional visits to the leasing office, the Henderson Defendants did nothing to remedy any of the issues with the apartment at any time. (Id. at ¶ 17.)

On or around June 16, 2022, as Plaintiff was walking through his kitchen after a long day of work, a section of the floor suddenly gave way, and he fell several feet down into a crawl space, causing him to break his back. (FAC at ¶ 19.) Since the fall, Plaintiff has been unable to work and has continued to experience a number of cognitive difficulties, including memory problems, severe back pain, and frequent headaches. (Id. at ¶ 22.)

In or around November 2022, Plaintiff alleges the Henderson Defendants wrongfully evicted him from his apartment, in retaliation for his repeated complaints and his devastating fall through their floor. (FAC at ¶ 27.)

On December 20, 2023, Plaintiff filed the operative FAC against Defendants alleging causes of action for: (1) negligence; (2) premises liability; (3) negligent infliction of emotional distress; and (4) intentional infliction of emotional distress.

On February 2, 2024, the Henderson Defendants filed an answer to the FAC asserting a general denial and affirmative defenses.

On April 14, 2026, the Henderson Defendants filed the motion presently before the court, a motion for summary judgment, or in the alternative, summary adjudication to the FAC. Plaintiff filed written opposition. The Henderson Defendants filed reply papers and evidentiary objections.

In reply, the Henderson Defendants argue Plaintiff's opposition was untimely filed and served. Even so, the Henderson Defendants do not articulate any prejudice by the untimely filing and service of the opposition. Nor does there appear to be any prejudice as they filed timely substantive reply papers including evidentiary objections. And this court prefers to address cases on the merits whenever possible. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds].) The court therefore considers the opposition on its merits.

Trial is scheduled for August 10, 2026.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

The Henderson Defendants move for an order of summary judgment, or in the alternative, summary adjudication on the ground that Plaintiff cannot establish causation on any of his claims for relief.

Motion for Summary Adjudication

“If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court, rule 3.1350(b).)

“If a party desires adjudication of particular issues or subissues, that party must make its intentions clear in the motion... [Citation]. There is a sound reason for this rule: ‘... the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that an issue-by-issue adjudication might be ordered if summary judgment was denied.’ [Citation.]” (*Gonzalez v. Super. Ct.* (1987) 189 Cal.App.3d 1542, 1546.)

Similarly, in *Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, the Sixth Appellate District states:

“A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. The movant must ‘state [] specifically in the notice of motion and ... repeat [], verbatim, in the separate statement of undisputed material facts,’ ‘the specific cause of action, affirmative defense, claims for damages, or issues of duty’ as to which summary adjudication is sought. [Citations.] The motion must be denied if the movant fails to establish an

entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers.” (*Id.* at pp. 743-744, emphasis added.)

Here, the notice of motion includes a caption on the first page identifying the motion as one for summary judgment or, alternatively, summary adjudication. But, the contents of the notice of motion do not specifically request summary adjudication of any cause of action, affirmative defense, claim for damages or issue of duty. Instead, the Henderson Defendants request an order adjudicating the issue of causation which is not an appropriate issues for resolution by motion for summary adjudication. Nor does the separate statement set forth the cause of action, affirmative defense, claim for damages or issue of duty for which summary adjudication is requested as required by the rules of court.

Consequently, the court lacks any legal grounds to grant or deny the Henderson Defendants’ alternative motion for summary adjudication. Therefore, the instant application is treated solely as a motion for summary judgment.

Evidentiary Objections

“In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court...” (Code Civ. Proc., § 437c, subd. (c).)

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Written evidentiary objections must be made in a separate document and must not be re-stated or re-argued in the separate statement. (Cal. Rules of Court, rule 3.1354(b).) Objections must identify the specific item of evidence that is objectionable. (*Ibid.*) In addition, evidentiary objections must be accompanied by a proposed order that complies with the requirements set forth in California Rules of Court, rule 3.1354(c). The rule requires an objecting party to file two separate documents, objections and a separate proposed order, both in one of the approved formats set forth in the rule. (See Cal. Rules of Court, rule 3.1354(b) and (c).)

In reply, the Henderson Defendants submit objections to evidence incorporated with Plaintiff’s opposition. The court OVERRULES Objection Nos. 1-7. The court declines to rule on the remaining objections as they are not material to the outcome of the motion for reasons explained below.

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute.

[Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

“Defendants moving for summary judgment may satisfy their initial burden either by producing evidence of a complete defense or by showing the plaintiff’s inability to establish a required element of the case. [Citations.]” (*Spinks, supra*, 171 Cal.App.4th at p. 1021.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. omitted.) If the party opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* at p. 843.) “[S]ummary judgment is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660.)

Analysis

On summary judgment, “the pleadings frame the issues to be resolved. ‘The purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] ‘The function of the pleadings in a motion for summary judgment [adjudication] is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.’ [Citations.]’ [Citations.]” (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477.)

As stated above, the operative pleading alleges causes of action for negligence, premises liability, negligent infliction of emotional distress, and intentional infliction of emotional distress. To prevail on these cause of action at trial, Plaintiff must demonstrate that affirmative conduct or omissions by the Henderson Defendants were the cause of his injuries. (See *Hassaine v. Club Demonstration Services, Inc.* (2022) 77 Cal.App.5th 843, 850 [“The essential elements for both negligence and premises liability are duty, breach, causation, and damages.”]; *Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129 [“Negligent infliction of emotional distress is a form of the tort of negligence, to which the elements of duty, breach of duty, causation and damages apply.”]; see also *Cochran v.*

Cochran (1998) 65 Cal.App.4th 488, 494 [a claim for intentional infliction of emotional distress requires a plaintiff to prove that his or her injuries were actually and proximately caused by the defendant's outrageous conduct].)

As to causation, Plaintiff alleges in relevant part that:

“Defendants Henderson Square Associates, Woodmont Real Estate Services and Does 1 through 50 carelessly and negligently owned, hired, trained, and supervised personnel who operated, maintained, cleaned, inspected and controlled said premises, specifically failed to repair the flooring of Farzam Forouzandeh's apartment, causing the floor to give way as Farzam Forouzandeh walked over it, and causing an extremely dangerous condition of which Farzam Forouzandeh was unaware (a deep crawl space beneath his kitchen floor,) causing Plaintiff to fall through the floor, which greatly injured Plaintiff Farzam Forouzandeh.” (FAC at ¶ 30.)

“Farzam Forouzandeh's harm ordinarily would not have happened unless someone was negligent. The harm was caused by something that only Henderson Square Associates & Woodmont Real Estate Services controlled; and Farzam Forouzandeh's voluntary actions did not cause or contribute to the event[s] that harmed him.” (FAC at ¶ 31.)

On summary judgment, the Henderson Defendants argue Plaintiff cannot show causation to support any of his claims.

As causation is the sole issue raised on summary judgment, the court declines to consider Plaintiff's breach of duty argument in opposition.

“In order for a plaintiff to satisfy the causation element of a negligence cause of action, he or she must show the defendant's act or omission was a substantial factor in bringing about the plaintiff's harm. [Citation.] ‘In other words, [the] plaintiff must show some substantial link or nexus between omission and injury.’ [Citation.]” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1104.)

As to negligence, “[a] plaintiff meets the causation element by showing that (1) the defendant's breach of its duty to exercise ordinary care was a substantial factor in bringing about plaintiff's harm, and (2) there is no rule of law relieving the defendant of liability.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205 (*Ortega*).)

“ ‘On the issue of the fact of causation, as on other issues essential to the cause of action for negligence, the plaintiff, in general, has the burden of proof. The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.’ [Citation.]” (*Ortega, supra*, 26 Cal.4th at pp. 1205-1206.)

“ ‘Whether a defendant's conduct actually caused an injury is a question of fact [citation] that is ordinarily for the jury [citation].’ [Citation.] ‘[C]ausation in fact is ultimately a matter of

probability and common sense: “[A plaintiff] is not required to eliminate entirely all possibility that the defendant’s conduct was not a cause. It is enough that he introduces evidence from which reasonable [persons] may conclude that it is more probable that the event was caused by the defendant than that it was not. The fact of causation is incapable of mathematical proof, since no [person] can say with absolute certainty what would have occurred if the defendant had acted otherwise. If, as a matter of ordinary experience, a particular act or omission might be expected to produce a particular result, and if that result has in fact followed, the conclusion may be justified that the causal relation exists. In drawing that conclusion, the triers of fact are permitted to draw upon ordinary human experience as to the probabilities of the case.” [Citation.]’ [Citation.]” (*Raven H. v. Gamette* (2007) 157 Cal.App.4th 1017, 1029-1030.)

Causation is ordinarily a question of fact which cannot be resolved by summary judgment. (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 212.) The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion. (*Ibid.*)

The Henderson Defendants first argue there is no evidence of causation as Plaintiff has a preexisting condition and history of back-related issues that predate the alleged accident. As a preliminary matter, the memorandum of points and authorities submitted by the Henderson Defendants does not direct the court to any specific material facts in the separate statement to support this position.

“The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed.” (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210.) As one California appellate court explained:

“Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and **to permit trial courts to expeditiously review complex motions for SAI and summary judgment to determine quickly and efficiently whether material facts are disputed.**” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335, emphasis added.)

As another court articulated:

“Courts are entitled to assistance from counsel, and an invitation to search without guidance is no more useful than a litigant’s request to a district court at the summary judgment stage to paw through the assembled discovery material. ‘Judges are not like pigs, hunting for truffles buried in’ the record. [Citation.]” (*Albrechtsen v. Bd. of Regents of Univ. of Wisconsin Sys.* (2002) 309 F.3d 433, 436.)

That said, the Henderson Defendants have submitted evidence in support the position which is before the court and rely heavily on *Beebe v. Wonderful Pistachios & Almonds LLC* (2023) 92 Cal.App.5th 351 (*Beebe*), a recent decision from the Fifth Appellate District. *Beebe* however is not persuasive as it does not stand for the proposition that a defendant prevails on the issue of causation where a plaintiff has a preexisting condition. Instead, the appellate court

concluded summary judgment was not appropriate in a personal injury case where a triable factual issue existed as to whether there was a reasonable medical probability that a failure to safely remove bird droppings at a facility where a subcontractor's employee worked on construction projects had been a substantial factor in causing the employee to develop an illness. The Court of Appeal stressing that, while the substantial factor test is a relatively broad one, the causation issue addresses whether it is *more likely than not* that plaintiff's injury was a result of defendant's act or omission. (*Beebe, supra*, at p. 370.)

The court notes also that, "[e]ven in cases involving only negligent conduct, where the victim has a preexisting physical or mental condition that makes him unusually susceptible and results in harm greater than might reasonably be expected, the actor is nevertheless liable for all such harm." (*Fisher v. Fisher* (2026) 118 Cal.App.5th 899, 923.) And, to the extent that Plaintiff's preexisting back injuries be given any consideration, that is an issue to be weighed by the trier of fact at the time of trial. (See *Kids' Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 879-880 [there is no weighing of evidence on a motion for summary judgment].)

The Henderson Defendants also contend Plaintiff provided inconsistent dates and accounts of the alleged accident and did not report the incident until 4-5 weeks after it occurred. (See Henderson Defendants' Separate Statement of Undisputed Facts ["SSUF"] at Nos. 78-79.) But, these contentions are unavailing as Plaintiff alleged an approximate date of the accident as "on or around June 16, 2022." (FAC at ¶ 19.) In fact, Plaintiff admitted at deposition that the accident occurred in June 2022. (See Plaintiff's Additional Fact at No. 88 [Plaintiff's Depo at p. 7:15-21].) Regardless, these points are not material as they do not address whether conduct or omissions by the Henderson Defendants were a substantial factor in causing Plaintiff's injuries in this case.

The Henderson Defendants further assert there is no causation to support Plaintiff's claims as his present medical condition is the result of the natural and normal progression of his pre-existing disease. In support, they rely on expert testimony from Dr. Robert Rovner M.D. ("Dr. Rovner"), a board certified orthopedic surgeon who performed an IME on Plaintiff on December 8, 2025. (See Henderson Defendants' SSUF at No. 80.)

"As a general matter, juries may decide issues of causation without hearing expert testimony. [Citation.] But '[w]here the complexity of the causation issue is beyond common experience, expert testimony is required to establish causation.' [Citations.]" (*Webster v. Claremont Yoga* (2018) 26 Cal.App.5th 284, 290; see *Jones v. Ortho Pharm. Corp.* (1985) 163 Cal.App.3d 396, 402 ["The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony."].)

According to evidence submitted by the Henderson Defendants, Dr. Rovner: (1) reviewed Plaintiff's entire medical history beginning when he had his first doctor appointment in the US on October 19, 2020, through Plaintiff's most recent appointment with Dr. Kenneth Light ("Dr. Light"); and (2) performed a physical examination of Plaintiff. (See Henderson Defendants' SSUF at Nos. 81-82.) Following his diagnosis of Plaintiff, Dr. Rovner, in his report, concluded in pertinent part:

"Mr. Forouzandeh has a straightforward physical examination consistent with prior lumbar surgery with persistent left sciatica and a left foot drop. It is unclear whether the surgery that he has already undergone was of any help, or

whether it was temporarily helpful and then the symptoms recurred. He may well require further surgery, or at least that might be an option for him, but his need for the original operation and any subsequent care is simply not the result of the incident on June 21, 2022. **His medical records clearly document the same exact symptoms referable to his lower back and left sciatic leg pain that he experienced after the incident of June 21, 2022, and the surgery that was done after that was for this preexisting condition and really not due at all to the June 21, 2022 events.**” (*Id.* at Nos. 83-84, emphasis added.)

In opposition, Plaintiff provides an expert declaration from Dr. Light which states in relevant part:

“From the material provided to me, on 6/21/22, the patient slipped through the floor. He felt a sudden escalation of his back pain with pain radiating down his left leg and a footdrop. He subsequently was referred to Edward Rustamzadeh who performed an L4-5 laminectomy and discectomy for herniated disc discovered on the MRI scan of 6/22/22, one day following the accident. He subsequently had another MRI scan done on 2/22/24 that shows recurrent disc herniation and scar tissue which is labeled the L5-S1 segment, which was the operative segment, and could also theoretically be considered the L3-5 level for the reasons mentioned above. I also reviewed another MRI scan on 3/15/23 that again identifies an extruded disc which is read out as the L5-S1 level on this scan, but is really the L4-5 level.

After reviewing all of the documents, looking at the MRI reports and taking into account the patient’s history and recount of the appearance of symptoms, it is my opinion that the patient had a pre-existing disc protrusion at L5-S1. **As the result of the subject fall accident on or about 6/16/22, he fell through the floor sustaining a herniated disc at the second mobile disc level which we will call the L4-5 level, which resulted in a footdrop and the need for surgery and the current need for revision surgery. Thus, the fall made the pre-existing conditions he had worse.**” (See Plaintiff’s Additional Facts at Nos. 129-130; Dr. Light Decl. at ¶¶ 11-12, emphasis added.)

The expert testimony provided on both sides creates a conflict in the evidence on the issue of causation that cannot be resolved by a motion for summary judgment. (See *Saldana v. Globe-Weis Systems Co.* (1991) 233 Cal.App.3d 1505, 1510 [“The trial court’s sole function on a motion for summary judgment is issue finding, not issue determination.”]; *Lugtu v. California Highway Patrol* (2001) 26 Cal.4th 703, 708 [“[I]n view of the conflicting declarations and the provisions of the CHP Officer Safety Manual submitted by plaintiffs in opposition to the summary judgment motion, the issue whether the officer was or was not negligent cannot properly be resolved by a court as a matter of law and instead presents a triable issue of fact for the jury’s determination.”]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840 [“The trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true.”]; see also *Roe v. McDonald’s Corp.* (2005) 129 Cal.App.4th 1107, 1110, fn. 1 [“A summary judgment simply cannot be defended with a credibility argument.”].)

As a final point, the Henderson Defendants argue they are entitled to summary judgment even if causation is just as likely as not. In support, they rely on *Padilla v. Rodas* (2008) 160

Cal.App.4th 742 (*Padilla*) for the proposition that “[a] mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.” (*Padilla, supra*, at p. 752, italics and citation omitted.) The Henderson Defendants also cite *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1119 (*Stokes*), a Sixth Appellate District decision, where the appellate court reiterated that a “plaintiff must establish, by nonspeculative evidence, some actual causal link between the plaintiff’s injury and the defendant’s failure to provide adequate security measures.” (*Stokes, supra*, at p. 1217.) But, the court is not persuaded by these authorities as Plaintiff submitted nonspeculative evidence to support causation for reasons stated above. Nor is the court inclined to grant summary judgment on the basis that the “probabilities are best evenly balanced” as Plaintiff has provided expert medical evidence establishing that his fall made his pre-existing conditions worse. Resolution of that disputed issue must ultimately be determined by the trier of fact at trial, not on this motion for summary judgment. (See *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

Therefore, the motion for summary judgment is DENIED.

Disposition

The motion for summary judgment to the FAC is DENIED.

The court will prepare the order.

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Calendar Lines 9-10

Case Name: Tashjian v. Macias Gini & O'Connell LLP et
Case No.: 25CV472277

I. Background

Plaintiff Vahe Tashjian ("Plaintiff"), as trustee of the Vahe S. Tashjian 2018 Revocable Living Trust ("the Trust"), brings this action against defendant Macias Gini & O'Connell LLP ("Defendant"). Plaintiff is a member of 18500 Marshall Ln LLC ("Marshall") and it is named as a nominal party.

In 2021, Dutchints Development, LLC ("DDL"), a developer of real property, filed for bankruptcy and the proceeding remains pending. (First Amended Complaint ("FAC"), ¶ 8.) Prior to filing for bankruptcy, DDL entered into purchase negotiations for vacant land located at 18500 Marshall Lane in Saratoga, California. (*Id.* at ¶ 9.) The seller and DDL entered into a final Purchase and Sale Agreement ("the Agreement") with specific terms. (*Ibid.*) In 2018, the articles of organization for Marshall were filed and DDL was listed as the manager and sole member of Marshall. (*Id.* at ¶ 10.)

Thereafter, DDL wired an initial deposit for Marshall, but then ultimately delivered a notice of termination to the seller. (FAC, ¶ 11.) The parties then made amendments to the Agreement which resulted in a modified purchase price and an extended approval date. (*Ibid.*)

In May 2019, DDL assigned the Agreement to Marshall and Marshall then wired a second deposit. (FAC, ¶ 12.) In August 2019, Marshall adopted an operating agreement and elected to be a manager-managed LLC, with DDL as the manager. (*Id.* at ¶ 13.) In October 2019, Marshall sent the one-year deposit to hold in escrow pursuant to the Agreement. (*Id.* at ¶ 15.) Marshall's 2019 tax return was then prepared by Defendant and listed DDL as a representative, provided for nine partners, and included K-1's for each member reflecting the contributions. (*Id.* at ¶ 16.) The parties again amended the Agreement and acknowledged that Marshall had not obtained final approval of the development map, thus, the parties agreed to extend close of escrow. (*Id.* at ¶ 17.)

Then the 2020 taxes were prepared and incorrectly listed Marshall as a "pass through entity of" DDL. (FAC, ¶ 18.) In October 2022, Plaintiff attempted to contact Defendant to inquire why the 2020 tax returns incorrectly listed DDL as having 100% ownership interest in Marshall. (*Id.* at ¶ 21.) The incorrect taxes subjected Marshall to DDL's bankruptcy proceedings. (*Id.* at ¶ 22.) The inaccurate tax filings terminated any and all possibility for Marshall to complete its development project. (*Id.* at ¶ 23.)

On August 8, 2025, Plaintiff filed the initial complaint in pro per. On August 13, 2025, Plaintiff filed the operative FAC, in pro per, asserting a single cause of action for professional negligence.

On December 19, 2025, Defendant filed a demurrer to the FAC. Plaintiff has since obtained counsel and opposes the motion. On December 23, 2025, Defendant filed a motion to strike portions of the FAC. This motion is also opposed.